

ARDSLEY FINANCIAL GROUP
Corporate Real Estate
Corbin Tower, Level 19, Los Angeles, California

May 17, 2011

Mr. Roland Ashcombe, AIA
Principal in Charge
VAA interiors + architecture
8420 Hayden Place
Culver City, California 90232

Re: Project 632588 — Ardsley Financial Group Headquarters, Corbin Tower, Levels 12–19

Substitution Request SR-014 — Owner's written direction to delete Specification Section 09 05 61

Dear Mr. Ashcombe,

This letter is Ardsley Financial Group's written direction on Substitution Request SR-014, confirmed by resolution of the Ardsley executive committee on May 16, 2011.

1. Direction.

Ardsley Financial Group directs VAA interiors + architecture to **delete Specification Section 09 05 61, Common Work Results for Flooring Preparation, in its entirety** from the Contract Documents for Project 632588, across Levels 12 through 19, and to issue the corresponding Architect's Supplemental Instruction so that Thackston Bell Construction may proceed with the flooring sequence.

Ardsley accepts the resulting credit of **\$347,900** and the recovery of **18 calendar days** as priced in SR-014.

2. Acknowledgments.

In giving this direction Ardsley acknowledges and records the following:

- (a) This is an **owner-directed deletion**. It originates with Ardsley and not with the design team.
- (b) It is made **over VAA's written recommendation of April 6, 2011**, which recommended against the deletion, which set out the in-situ relative humidity results of 92 to 96 percent against an 85 percent threshold, and which predicted adhesive breakdown, loss of bond and lifting of the floor covering within eight to fifteen years of installation, together with a risk of microbial growth and indoor air quality complaints. Ardsley has read that letter and the executive committee had it before them.
- (c) Ardsley has relied on the independent assessment prepared for Ardsley by **Prewitt Building Science** dated March 9, 2011, and on Prewitt's opinion that the mitigation system is not required for this installation. Prewitt was engaged by Ardsley and reports to Ardsley.
- (d) **Ardsley accepts responsibility for the consequences of this deletion**, including any future flooring performance issues arising from slab moisture on Levels 12 through

19, and **will not look to VAA** on account of this direction.

3. Instruction to proceed.

Please issue the ASI. Copies of this letter have gone to Bernard Kilcoyne and to Owen Radcliffe at Thackston Bell so that there is no question at the site about the origin of the change.

Sincerely,

Dana Truscott

Dana Truscott
Director of Corporate Real Estate
Ardsley Financial Group

cc: Bernard Kilcoyne, Facilities Manager, Ardsley Financial Group
Owen Radcliffe, Project Manager, Thackston Bell Construction
Marguerite Okonkwo, AIA, VAA interiors + architecture
Ardsley executive committee file — resolution of May 16, 2011